

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Anthony Peralta,

: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against-

:

City of New York, New York City Police Department, :
Police Officer Daniel Callinan, Shield 17721 of the :
23 Precinct and New York City Police Officers John Doe, :

:

Plaintiff's residence is:
50 East 102 Street
New York, NY 10029

:

Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in New York County.

Dated: **October 26, 2018**
 Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse
Suite 1111
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Daniel Callinan, Shield 17721 of the 23 Precinct

New York City Police Officers John Doe,

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alleges upon information and belief as follows:

1. That at all times hereinafter mentioned, Plaintiff Anthony Peralta (hereinafter referred to as “PERALTA”) is a resident of New York County, State of New York.
2. That at all times hereinafter mentioned, the Police Officer Daniel Callinan, Shield 11721 of the 23 Precinct, (hereinafter referred to as “CALLINAN”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of PERALTA, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about February 15, 2018 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. On or about July 6, 2018 amended notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. That on or about June 19, 2018, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about February 16, 2017 at approximately 5:00AM in the vicinity of 50 East 102 Street, New York, NY Plaintiff was walking getting ready to leave his apartment to go to work when CALLINAN and DOES entered his apartment, handcuffed and arrested him.
10. That at no time did CALLINAN or DOES possess the lawful right to enter Plaintiff's home.
11. That at no time did Plaintiff possess anything of an unlawful or illegal nature on his person.
12. That at no time did Plaintiff possess anything of an unlawful or illegal nature in his room.

13. That at no time did CALLINAN or DOES observe anything of an unlawful or illegal nature in the common areas of the apartment.

14. That after Plaintiff was arrested, he was transported to the 23 precinct in New York County.

15. That while Plaintiff was inside of said precinct, Plaintiff was held in a holding cell occupied with other males for several hours.

16. That after several hours Plaintiff was transported to New York County Central Booking, located at 100 Centre Street, New York, NY.

17. That on or about February 17, 2017 Plaintiff was arraigned on docket 2016NY010721, wherein he was charged with Criminal Possession of a Controlled Substance in the Seventh Degree and related offenses.

18. That at the arraignment, Plaintiff was released on his own recognizance and ordered to return to court on another day.

19. That on and between and February 17, 2017 and February 1, 2018, Plaintiff made several court appearances until his case was dismissed upon application of the Office of the New York County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

20. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 19, as if more fully stated herein at length.

21. That Defendants acted with actual malice toward Plaintiff and with willful and wanton malice, indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

22. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

23. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

24. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

25. That as a result of the Defendants' actions, Plaintiff missed several days form work.

26. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

29. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

34. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff was in possession of narcotics and drug paraphernalia despite the fact that he was not.

35. That during the pendency of the case, Defendants did cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. At all times pertinent hereto, CALLINAN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

38. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CALLINAN and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. The City of New York and New York City Police Department's failure to provide adequate training and supervision to CALLINAN and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

42. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

43. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

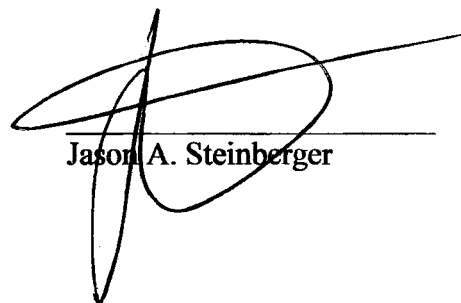
Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 26, 2018



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

ANTHONY PERALTA,

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER DANIEL CALLINAN, SHIELD 17721 OF THE 23 PRECINCT AND NEW
YORK CITY POLICE OFFICERS JOHN DOE,****Defendant.**

SUMMONS AND COMPLAINT

**LAW OFFICES OF JASON A. STEINBERGER, LLC
888 Grand Concourse
Suite 1H
Bronx, NY 10451**

To:

Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for**PLEASE TAKE NOTICE**☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on**NOTICE
OF ENTRY**☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF once of the Judges of the within named Court,
SETTLEMENT at

on 200 , at m.

Dated:**JASON A. STEINBERGER, ESQ.
888 Grand Concourse, Suite 1H
Bronx, NY 10451**

To:

Attorney(s) for